

ELIZABETH II



1981 CHAPTER iv

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to Dunfermline District Council. [29th January 1981]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the Dunfermline District Council Short title. Order Confirmation Act 1981.

SCHEDULE

DUNFERMLINE DISTRICT COUNCIL

*Provisional Order to confer powers on the Dunfermline District Council
with respect to stray dogs; and for other purposes.*

1973 c. 65. Whereas the Dunfermline District Council (hereinafter referred to as “the Council”) are vested with all the functions of a district council by virtue of section 2 of the Local Government (Scotland) Act 1973 for the area of Dunfermline described in column 3 of Part III of Schedule 1 to that Act:

And whereas it is expedient that powers should be conferred upon the Council with respect to the control of stray dogs:

And whereas it is expedient that the other provisions of this Order should be enacted:

1936 c. 52. And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now, therefore, in pursuance of the powers contained in the said Act, the Secretary of State orders as follows:—

Short title. 1. This Order may be cited as the Dunfermline District Council Order 1980.

Interpretation. 2. In this Order “the Council” means the Dunfermline District Council.

As to application of section 3 of Dogs Act 1906. 1906 c. 32. 3.—(1) In its application to the Dunfermline district and to the Council section 3 of the Dogs Act 1906 (which provides for the seizure of stray dogs) shall be read and have effect as if the following subsections were substituted for subsections (1) to (7) of that section:—

“(1) Where a police officer or any person duly authorised by the Council for the purposes of this subsection has reason to believe that any dog is a stray dog, he may seize the dog and may detain it until the owner has claimed it and paid all expenses incurred by reason of its detention.

(2) Where any dog so seized wears a collar having inscribed thereon or attached thereto the address of any person, or the owner of the dog is known, the chief officer of police, or any

person authorised by him in that behalf, or the Council, or any person authorised by them in that behalf, as the case may be, shall serve on the person whose address is given on the collar, or on the owner, a notice in writing stating that the dog has been so seized, and will be liable to be sold or destroyed if not claimed within ten clear days after the service of the notice.

(3) A notice under this section may be served either—

(a) by delivering it to the person on whom it is to be served;
or

(b) by forwarding it by registered post or by the recorded delivery service in a letter addressed to that person at his usual or last known place of abode, or at the address given on the collar.

(4) Where any dog so seized has been detained for ten clear days after the seizure, or, in the case of such notice as aforesaid having been served with respect to the dog, then for ten clear days after the service of the notice, and the owner has not claimed the dog and paid all expenses incurred by reason of its detention, the chief officer of police, or any person authorised by him in that behalf, or the Council, or any person authorised by them in that behalf, as the case may be, may cause the dog to be sold or destroyed in a manner to cause as little pain as possible.

(5) No dog so seized shall be given or sold for the purposes of vivisection.

(6) The chief officer of police and the Council shall keep, or cause to be kept, one or more registers of all dogs seized under this section by him or them which are not transferred to an establishment for the reception of stray dogs. The register shall contain a brief description of the dog, the date of seizure, and the particulars as to the manner in which the dog is disposed of, and every such register shall be open to inspection by any member of the public on payment of a fee of ten pence.

(7) A dog seized under this section shall not be disposed of by transferring it to an establishment for the reception of stray dogs unless a register is kept for that establishment containing such particulars as to dogs received in the establishment as are above mentioned, and such register is open to inspection by any member of the public on payment of a fee not exceeding ten pence. ”.

(2) The Council may appoint such officers as they consider necessary for the discharge of the functions of the Council under this section.

4. The costs, charges and expenses of and incidental to the preparing Costs of Order. for, obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Council in such manner as they may determine.

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